

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 29, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WELLS FARGO BANK, N.A. vs. ERIK CARTER
Case No. CL24-00657**

Motion by Defendant to Quash Service of Summons and to Set Aside and Vacate Default Judgment

TENTATIVE RULING

C.C.P. §473(e) authorizes a motion to vacate a default judgment void for lack of proper service at any time after entry of the judgment.

The threshold for such relief is a void/improper service of summons.

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. “A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true.” 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it “in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age”, and thereafter mailing another copy to that same address, addressed to the person intended to be served.

This is what the declaration of service by the registered process server who claims to have completed service says he did.

Defendant has not presented a declaration from his “longtime companion”, to dispute being contacted on the day and time of claimed service, and/or to dispute being informed of and/or handed a copy of the summons and complaint.

Defendant’s declaration also does not foreclose the possibility that a different woman than his “longtime companion” answered the door when the process server came.

Finally, Defendant’s declaration does not assert that he did not receive a copy of the summons and complaint in the mail within a few days of this claimed substituted service. It also fails to dispute receiving other documents about the case in the mail, such as the request for entry of default, or the later request for default judgment by clerk, which Plaintiff’s counsel claims were mailed to him back in April and July 2025 at that same address (the very address Plaintiff listed as his current address on the motion papers).

Defendant’s motion also cited other statutes, whose relief is not dependent upon a showing that service of summons was void/improper. But Defendant has failed to meet the requirements of any of those statutes.

C.C.P. §473(b) authorizes a defendant within six months of entry of default and/or default judgment to move to set aside the default and/or default judgment, upon a showing of “mistake, inadvertence, surprise, or excusable neglect.” But Defendant offered no showing of “mistake, inadvertence, surprise or excusable neglect”. And his motion was filed in March 2026, almost a year after entry of default, and about 8 months after default judgment.

C.C.P. §473.5 authorizes a defendant to obtain relief from judgment when the summons does not result in actual notice. However, such a motion must be filed “within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the defendant of a written notice that the default or default judgment has been entered.” The moving defendant must also provide a declaration under penalty of perjury showing that his or her lack of actual notice “was not caused by the party’s avoidance of service or inexcusable neglect”, and a proposed answer or other responsive pleading.

The notices of entry of default and default judgment were mailed to Defendant in April and July 2025, respectively, more than 180 days from Defendant’s filing of this motion in March 2026 (nor did Defendant provide a proposed responsive pleading, nor attesting to not avoiding service or committing inexcusable neglect by not opening his mail, etc.).

Defendant’s motion to quash and set aside entry of default and default judgment is therefore denied.

**CALIFORNIA AUTOMOBILE INSURANCE COMPANY and Subrogee of WAYNE
MARSH vs. CITY OF VALLEJO
Case No. CU23-02854**

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING

The motion for summary adjudication of the cause of action for inverse condemnation filed by the CITY OF VALLEJO is granted.

The CITY has established, as a matter of law, that it did not plant or direct the planting of the tree that fell on the residence of plaintiff's insured. The facts are undisputed that the tree was 80 to 100 years old and pre-existed the development of the parcel on which the tree was located. Therefore, the court cannot find, with respect to the tree, that the CITY took affirmative action to further a public project that caused injury to property, as required to impose liability for inverse condemnation. (See *Mercury Casualty Co. v. City of Pasadena* (2017) 14 Cal.App.5th 917).

Plaintiff contends that the public improvement upon which inverse liability may be based was not just the tree but the entire parcel that included the tree. However, the tree was in existence long before the development of the property. The fact that the tree was noted on maps or plans submitted to the CITY did not render it a feature designed and constructed by the CITY.

Because the court finds the tree was not a public improvement, the court finds that no public improvement caused the damage to the residence of plaintiff's insured.

Plaintiff does not contend that there is any liability for inverse condemnation based on the maintenance plan for the CITY'S trees, including the tree that fell on the residence of plaintiff's insured. Therefore, the adequacy of the CITY'S maintenance plan is irrelevant.

Given that plaintiff conceded the motion for summary adjudication of the cause of action for dangerous condition of property, the court's ruling granting the motion for summary adjudication of the cause of action for inverse condemnation concludes this case. Summary judgment shall be entered in favor of defendant CITY OF VALLEJO.

DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816

Motions to Compel

TENTATIVE RULING

The Parties are to appear to address whether Plaintiffs have submitted verifications as to any of their responses, specifically:

- (1) Motion to deem facts admitted and request for monetary sanctions.
- (2) Motion to compel responses to form interrogatories and request for monetary sanctions.
- (3) Motion to compel responses to requests for production and request for monetary sanctions.
- (4) Motion to compel responses to special interrogatories and request for monetary sanctions.

Even if Plaintiffs have submitted verifications to their responses, the Court will hear argument on whether sanctions should be imposed.

ROBERT HUGHES vs. PRO STEEL ERECTORS; ET AL.
Case No. FCS057451 (Consolidated with FCS057476)

AVILA's Motion to Substitute Personal Representative

TENTATIVE RULING

Plaintiff FREDY CASTILLO AVILA ("AVILA") moves to substitute in ZACHARY MOORE, solely in his capacity as personal representative of the estate of Defendant DANIEL MOORE, as a defendant in this case per Code of Civil Procedure section 377.41. DANIEL MOORE is deceased.

Code of Civil Procedure section 377.41 provides that a court may, upon motion, allow an action against a deceased person to continue against the representative of that person's estate so long as the plaintiff complies with Part 4 of Division 7 of the Probate Code (concerning creditor claims). Probate Code section 9370 (within Part 4 of Division 7) states that an action pending against a decedent at time of death may not be continued against the decedent's personal representative unless a claim is first filed as provided in Part 4 of Division 7, the claim is at least partially rejected, and the plaintiff applies to the court for an order permitting continuation within three months of notice of rejection. A creditor may consider a claim rejected if there has been no action on it

within thirty days of filing. (Prob. Code, § 9256.) The three-month time limit after rejection only applies if the plaintiff receives a notice of rejection informing him that there is a three-month time limit. (Prob. Code, § 9370, subd. (a)(3).)

AVILA filed his original action against DANIEL MOORE on December 1, 2021. DANIEL MOORE died on May 10, 2024. (Declaration of Nicholas J. Anderson in Support of Motion at ¶ 5, Exhibit C.) AVILA filed a creditor's claim against DANIEL MOORE's estate. (*Id.* at ¶ 6, Exhibit D.) More than thirty days have passed without action on the claim. (*Id.* at ¶ 9.) AVILA never received a notice telling him he had three months to make this motion in court, so the three-month time limit does not apply to him. All requirements for ZACHARY MOORE, as DANIEL MOORE's estate representative, to be substituted into this case are satisfied.

AVILA's motion to substitute in ZACHARY MOORE as a defendant solely in his capacity as personal representative of the estate of DANIEL MOORE is granted.

CHAMPION MORTGAGE v. FREDERICK COOLEY; ET AL.
Case No. FCS058061

Defendant's Motion to Compel CHAMPION's Further Responses to Form Interrogatories, Set Two, Special Interrogatories, Set Two, Requests for Admission, Set One, and Requests for Production, Set Two

TENTATIVE RULING

Defendant FREDERICK MARC COOLEY moves to compel Plaintiff CHAMPION MORTGAGE COMPANY ("CHAMPION") to further respond to certain of his discovery requests.

On March 30, 2026 the court specifically authorized Defendant to file this motion. However, the court only authorized the motion to discuss Defendant's requests for admission #10, 12, 33, and 34, issues regarding provision of a privilege log, and Plaintiff's response to Form Interrogatory 17.1 insofar as it pertains to requests for admission #6 and 7. The court disregards all other discovery issues raised in this motion other than those specifically identified in its March 30, 2026 order.

Requests for Admission. Request #10 asks CHAMPION to admit it was no longer the beneficiary of the relevant deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to enforce the debt" at that time. This is not a sufficiently direct response to the question posed. CHAMPION must further respond.

Request #12 asks CHAMPION to admit it had no right to foreclose on the deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to commence foreclosure" at that time. This is a sufficiently direct response to the question posed. CHAMPION need not further respond.

Requests #33 and #34 ask CHAMPION to admit it lacked standing to bring the instant judicial foreclosure action on February 8, 2022 and lacked standing to maintain the action thereafter. CHAMPION respectively admits it “was not the proper party to initiate suit” and “was not the proper party to maintain suit.” There are sufficiently direct responses to the questions posed. CHAMPION need not further respond.

Form Interrogatory 17.1. Form Interrogatory 17.1 asks a party to provide detailing information supporting its responses to requests for admission that are anything but unqualified admissions. With regard to requests for admission 6 and 7, wherein CHAMPION admitted it assigned all rights in the relevant deed of trust to Mortgage Asset Management, CHAMPION provides sufficient detailing information. CHAMPION need not further respond.

Privilege Log. CHAMPION has provided a privilege log supporting its responses to Defendant’s requests for production of documents wherein it withheld documents on claims of privilege, though it served that privilege log very late (April 23, 2026). A privilege log that provides sufficient information to evaluate the claims of privilege is sufficient; there is no requirement that each document in the privilege log have a particularly marked date of preparation, per se. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 [general standard for evaluating sufficiency of log].) CHAMPION need not further respond.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2033.290, subdivision (d) [requests for admissions] require sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds that sanctions are appropriate. Defendant was required to file an initial, lengthy motion to compel, which led to informal discovery conferences, Plaintiff’s production of a substantial amount of discovery, and then to the present discovery motion. The Court finds that sanctions against Plaintiff in the amount of \$13,500 is appropriate. The Court awards a reasonable amount of hours spent at 30 hours at a reasonable rate of \$450 per hour.

Conclusion. Defendant’s motion is granted as follows: CHAMPION must further respond to Request for Admission #10. Sanctions are imposed upon Plaintiff as set forth above. The sanctions are due and payable within 30 days of the date of service of this order. The motion is otherwise denied.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlhXJTcGxIVHRXZz09>

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